

CALDERBANK #3 — SKELETON (INTERNAL — CONDITIONS-PRECEDENT GATED)

HOLD: SKELETON — DO NOT SEND. Fires only when the conditions precedent are met. CONDITIONS PRECEDENT (all): (1) the disclosure list + NNPD copies received and mined; (2) the 64G outcome known (orders/consent/production); (3) 24 Aug passed (deemed refusal in hand) OR the request granted; (4) Report B held, or its date certain; (5) runway reviewed. Target window: late August – September 2026.

WITHOUT PREJUDICE SAVE AS TO COSTS To: Ms Renee Matheson, Workers' Compensation Regulator Re: WC/2024/227 — offer of settlement (Calderbank)

Structure: 1. RECITALS — THE RECORD AS IT NOW STANDS (the enlarged record): the admitted findings of the Reviewing Officer (unreasonable management action; employment a significant contributing factor — Form 24); the 64G production/verified absences [insert outcome]; the corrected legal test (s 32(1) "a significant contributing factor"); [the deemed refusal of 24 Aug and the employment-track state, stated factually in one paragraph]; Report B's conclusions [insert]; the costs history (Calderbank #2 served 1 Jul, rejected 16 Jul). 2. THE OFFER — [terms: resolution of the appeal; structure and quantum BLANK pending the record; consider: acceptance of the claim from the injury date / agreed statement / discontinuance terms]. The offer resolves the COMPENSATION CLAIM ONLY (rule 9 — deed scope watched; no release of employment-track rights). 3. WHY REJECTION IS UNREASONABLE — element-by-element against the recitals: on this record, the prospect of the Regulator maintaining the rejection at hearing is [X]; a rejection of this offer followed by a result no better engages s 545. 4. MECHANICS — open for 14 days; acceptance in writing; costs to date borne as [terms]; express Calderbank designation and s 545 reservation. 5. SERVICE — Matheson + copy to the registry as with #2 (service proof kept).